Intellectual Property

Alan Wallace
European Patent Attorney

a.wallace@frkelly.com | Tel. 028 9023 6000

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DUBLIN – BELFAST - CORK

Intellectual Property (IP)

- Copyright
- Design Right
- Registered Design
- Trade Marks
- Patent
- Trade Secrets

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Patents

- Protects technical inventions
- Products and processes – electronic, mechanical, biotech, software-related
- Must be novel and inventive
- **<u>Patent application must be filed before any non-confidential disclosure</u>**
- 20 year maximum duration, published after 18 months

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Patents

- No sales (offers for sale)
- No Publication
- No verbal disclosure
- No public use
- No public testing

Until you file a patent application!

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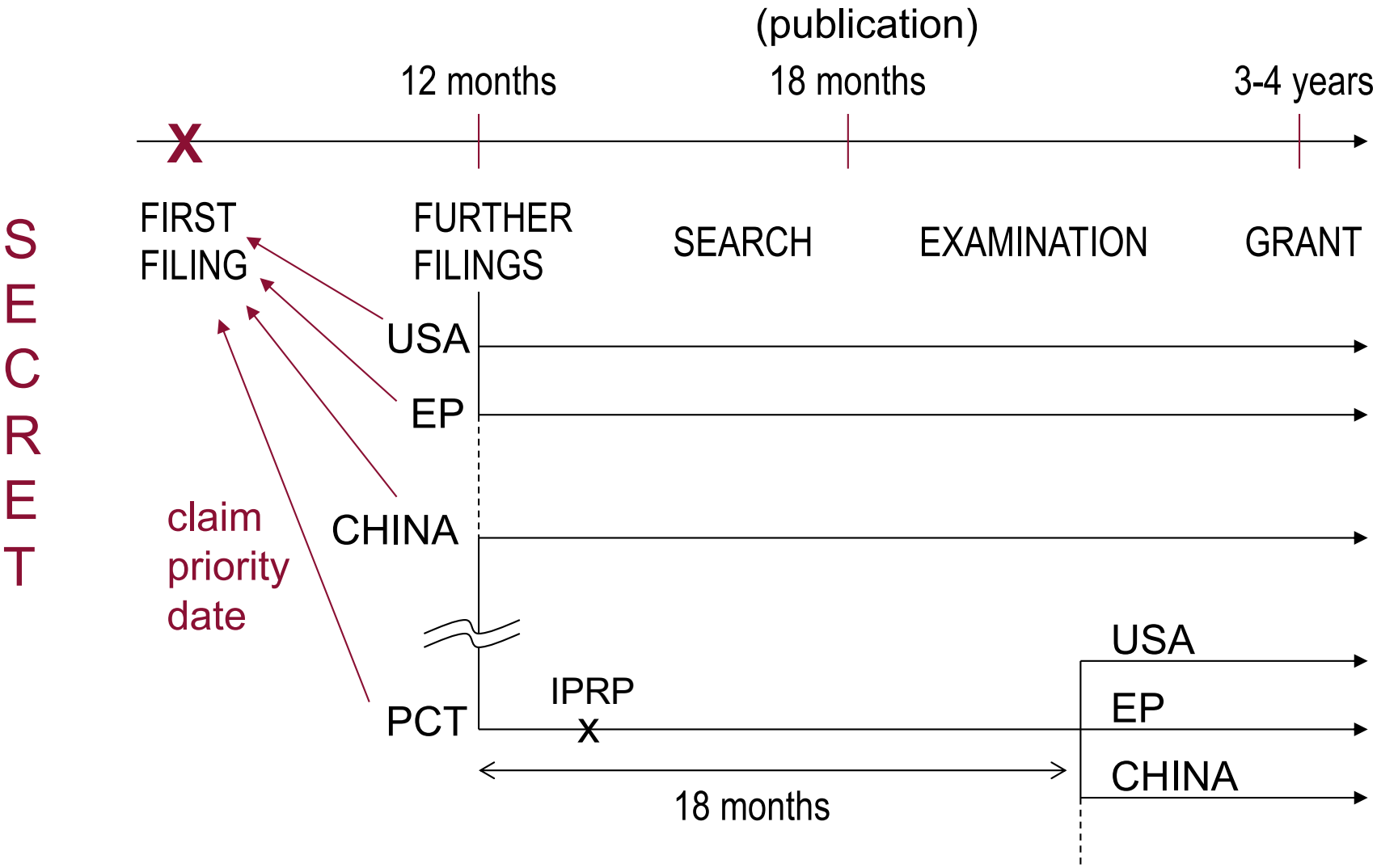
Patent Timeline



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Patent or Keep Secret?

- Patent applications are published 18 months after earliest filing date unless withdrawn beforehand
- Can you keep your invention secret?
- Could you detect your invention in a competitor's product?

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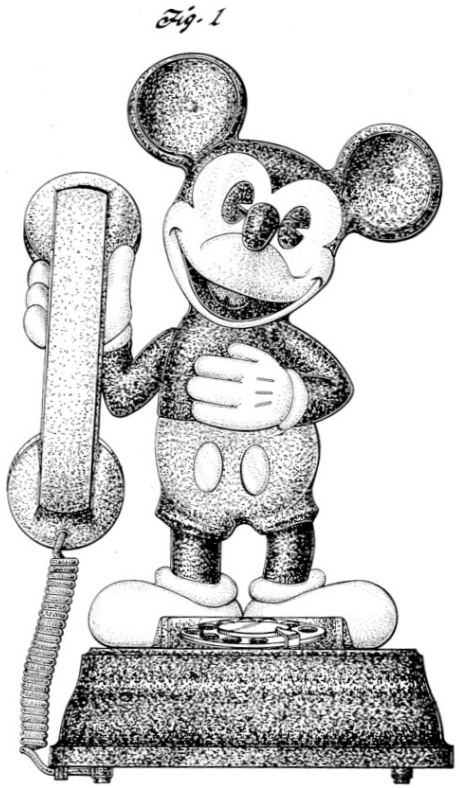
Computer-related Inventions

- Both EP and UK law explicitly exclude methods of doing business, mathematical methods and computer programs from patent protection

- It is nevertheless possible to obtain European patent protection for business and/or software type inventions in both jurisdictions

Registered Designs

- Protects appearance of products
- Typically features of shape, colour, texture, pattern
- Must be new and have “individual character”
- UK, EU or US Design application can be filed up to 12 months after first marketing
- 25 year maximum duration
- Post Brexit EU Registered design will no longer cover UK



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Traditional Design Examples

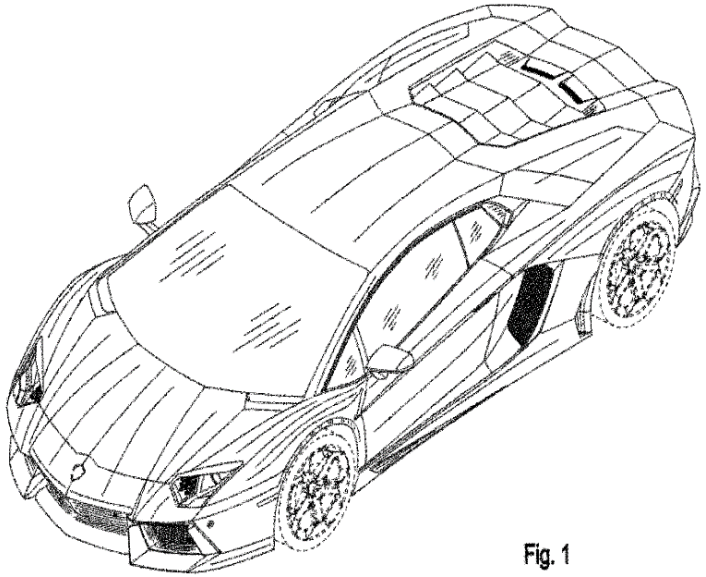

Fig. 1

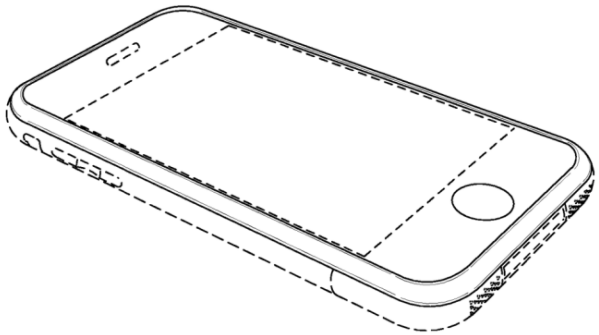

FIG. 1

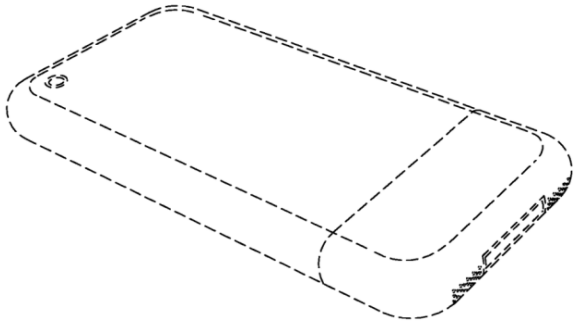

FIG. 2

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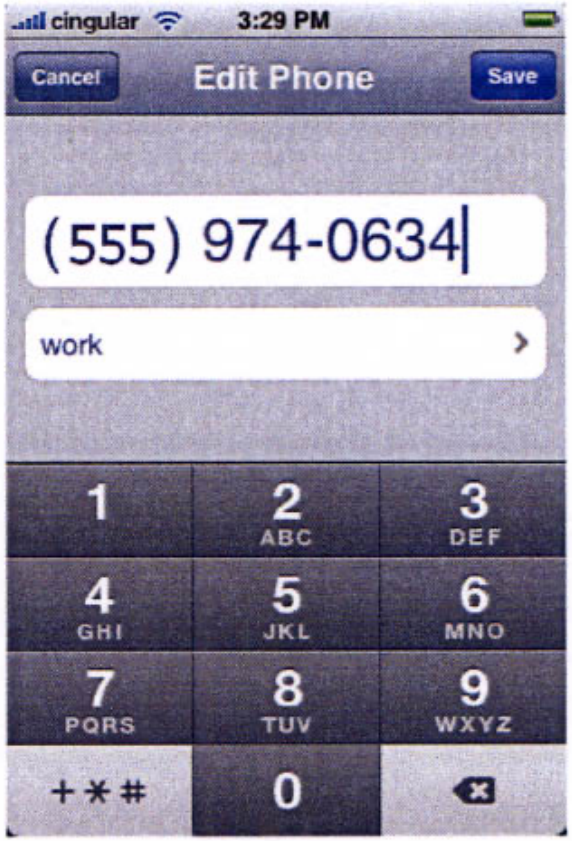
Digital Design Examples

US D604,305

EU RCD 000748694



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Design Right

- Protects original and non-commonplace aspects of shape and configuration
- Unregistered right – no application needed, but limited protection
- Only infringed if copying takes place
- Ensure you can prove date of creation of Design; keep good design records
- 10-15 year duration (UK); 3 years (EU)
- Post Brexit no EU design right for UK designs

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Trade Marks

- Registered (®) or unregistered (™)
- Protects names, logos, slogans, sounds, smells….
- Must be distinctive in respect of relevant goods/services
- Trade Mark application can be filed at any time and can be renewed indefinitely
- Unregistered rights dependant on reputation (“passing off”)

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Trade Marks

"If this business were to be split up…I would be glad to take the brands, trademarks and goodwill… and you could have all the cash, bricks and mortar…and I would fare better than you."

John Stuart (Chairman of Quaker Foods)

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Copyright

- Protects original literary and artistic works, including music, dramatic works, broadcasts, videos, films, **computer programs** and databases
- Unregistered right - exists automatically, no application needed
- Only infringed if copying takes place
- Typical duration is author's life plus 70 years
- Keep good records of creation process
- Use © Copyright {name} {creation date}

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Ownership

- Employers normally own subject matter created by their employees in the course of their normal duties
- Identify all relevant creators, employers, background contracts/agreements at the outset
- Put agreement(s) in place to ensure desired ownership position

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Why Have IP Assets?

- Protection
- Deterrent
- Licensing
- Tax relief (“Patent Box”)
- Asset building
- Attract investment / purchaser

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Project Checklist

- ✓ Identify IP (background and foreground)
- ✓ Assess confidentiality requirements
- ✓ Assess ownership position
- ✓ What documentation is required? (NDA, assignment, licence, consultancy agreement, collaboration agreement…)
- ✓ What protection steps are required? (patent application, document trade secrets…)

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THANK YOU!

GET IN TOUCH

ANY QUESTIONS?

028 9023 6000
a.wallace@frkelly.com

FRKelly
4 Mount Charles
Belfast
BT7 1NZ

FRKELLY

www.frkelly.com
@frkellyip | /frkelly
+44 28 9023 6000 | +353 1 231 4848